

cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Although *Lafitte* concerns a class action, not a PAGA-only case, this Court views the use of a lodestar cross-check as appropriate here.

Plaintiff has conducted a lodestar cross-check. Counsel calculate 230.5 hours, at hourly rates ranging from \$250 to \$1050, depending on the attorney. This results in a lodestar of approximately \$127,192.50, with an implied negative multiplier. Without necessarily endorsing every individual component of the lodestar, it is clear in this case that no adjustment is required.

The statute does not expressly address how the 25% plaintiff’s share of the penalties is to be allocated among all of the aggrieved employees. (*Iskanian v. CLS Transp. Los Angeles, LLC* (2014) 59 Cal.4th 348, 382.) Allocation based on pay periods is reasonable here.

Costs of \$11,935.88 are sought. They are reasonable and are approved.

The administrator’s costs of \$3,450 are reasonable and are approved.

D. Conclusion

The Court finds that the settlement is fair, reasonable, and adequate, and grants the motion to approve.

The Court will sign the proposed order previously submitted. In addition, the Court will add a compliance hearing for a suitable date (after the settlement has been implemented). One week before the compliance hearing, counsel shall file a compliance statement. 5% of the attorney’s fees shall be withheld by the Administrator pending the compliance hearing.

4. 9:00 AM CASE NUMBER: C23-02629
CASE NAME: WENDY GLASS VS. NAVNEET BAL
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY: BAL, NAVNEET K
TENTATIVE RULING:

Counsel for Defendants Harvrinder Singh Bal, East Bay Trans, Navneet K. Ball, and Haver Trans seek to withdraw as counsel in this matter. They have provided a declaration. The Court received no filings from any other interested parties.

For good cause, the Court now **grants** the Motion to Be Relieved as Counsel. The Court advises Defendants that corporations may not represent themselves.

5. 9:00 AM CASE NUMBER: C23-03039
CASE NAME: GERALD BEWLEY VS. DIABLO SOLAR SERVICES INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT DIABLO SOLAR SERVICES, INC. TO PROVIDE FURTHER RESPONSES TO FORM INTERROGATORIES (SET ONE)**

FILED BY: BEWLEY, GERALD

TENTATIVE RULING:

Plaintiff Gerald Bewley brought this Motion to Compel Supplemental Responses to Form Interrogatories – Employment. By the time of the hearing on this matter, all substantive issues relating to the discovery responses have been addressed. Only the issue of sanctions remains. For the reasons stated below, sanctions against Defendant Bryan Raymond and Diablo Solar Services only will be awarded in the amount of \$4,660 payable within 30 days of this order.

Defendants Diablo Solar Services and Bryan Ramond lacked representation from December 26, 2023—when Bryan Ramond, agent for service of process for the corporation was served—until December 2024. Subsequently, Defendants’ counsel was permitted to withdraw on October 16, 2025. Mr. Raymond and, crucially, Diablo Solar Services were again unrepresented until January 14, 2026. Plaintiff attempted to encourage Mr. Raymond to get his company represented but he did not respond well to these inquiries.

Meanwhile, Plaintiff Bewley served discovery requests, including these Form Interrogatories – Employment, on January 31, 2025. Defendants served responses on March 17, 2025. The parties met and conferred regarding these responses, but that meet and confer was largely unsuccessful. A large part of the lack of progress can be attributed to Mr. Raymond’s lack of counsel.

Facing a deadline, Plaintiff filed this Motion on November 14, 2025. Now that Defendants are once again represented, communications about the deficient discovery responses resumed March 18, 2026 and continued until recently. Defendants amendment responses April 22, May 8, and May 13, 2026. Plaintiff promptly notified the Court on May 14, 2026 that all substantive issues have now been addressed.

Given Defendant Bryan Raymond’s inaction (on his own behalf and on behalf of his company) in acquiring required counsel and the effect of that delay in requiring Plaintiff to file this (and related) motions, sanctions are appropriate. Code of Civ. Pro. § 2023.030. The sanctions will *not* issue against his current counsel. While the Court would have appreciated slightly more expeditious resolution of these issues, sufficient work was done to remedy the substantive concerns in a reasonable fashion that the attorneys will not be penalized.

6. 9:00 AM

CASE NUMBER: C23-03039

CASE NAME: GERALD BEWLEY VS. DIABLO SOLAR SERVICES INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS-GENERAL, SET 1**

FILED BY: BEWLEY, GERALD

TENTATIVE RULING:

Plaintiff Gerald Bewley brought this Motion to Compel Supplemental Responses to Form Interrogatories – General. By the time of the hearing on this matter, all substantive issues relating to the discovery responses have been addressed. Only the issue of sanctions remains. For the reasons stated below, sanctions against Defendant Bryan Raymond and Diablo Solar Services only will be